25STCV03940 25STCV03940

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-07-14

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Superior Court
of California

County of Los
Angeles

DEPARTMENT 729

TENTATIVE
RULING

EDGAR TORRES,

vs.

GENERAL MOTORS,
LLC.

Case No.:
25STCV03940

Hearing Date: July 14, 2026

Plaintiff
Edgar Torres' motion for attorneys'
fees, costs, and expenses is granted in the total reduced amount of $29,032.79.
Plaintiff's request for attorneys' fees
is granted the reduced amount of $28,305.00.

Plaintiff's costs are granted in the total amount of $727.79.

Plaintiff Edgar Torres ("Torres") ("Plaintiff") moves for an order awarding him a total of $34,693.79 in attorneys' fees, costs, and expenses against Defendant General Motors, LLC ("GM") ("Defendant"), consisting of (1) $25,305.00 in attorneys' fees; (2) a 2.0 multiplier enhancement on attorneys' fees (or $5,661.00); (3) $727.79 in costs and expenses; and (4) reservation of an additional $3,000.00 for Plaintiff's counsel to review Defendant's opposition, draft a reply brief, and attend the hearing on the instant motion. (Notice of Motion, pgs. 1-2; Civ. Code §1794(d).)

Background

This is a lemon law action brought under the Song-Beverly Consumer Warranty Act ("SBA"). On December 10, 2025, Plaintiff filed a Notice of Settlement of Entire Case, and Defendant stipulated that Plaintiff is the prevailing party entitled to recover reasonable fees and costs. (Decl. of Kashani ¶10, Exh. C; Decl. of Kay ¶9.)

On April 18, 2026, Plaintiff filed this motion for attorneys' fees. On June 30, 2026, Defendant filed its opposition. On July 7, 2026, Plaintiff filed a reply.

Discussion

Under Song-Beverly, a buyer who prevails in their action is entitled to an award "as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual lime expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code §1794(d).)

Here, the terms of the settlement[1] attached to the Declaration of Jacob Kashani ("Kashani") explicitly states that Plaintiff is the prevailing party for the purposes of the instant fee motion. (Decl. of Kashani ¶10, Exh. C at §1(c)(ii).) For the purposes of this motion, Plaintiff is therefore the prevailing party.

Reasonable Fees

To calculate a lodestar amount, the Court must first determine the reasonableness of the hourly rates sought by the Plaintiff's counsel. The Supreme Court of California has concluded that a reasonable hourly lodestar rate is the prevailing rate for private attorneys "conducting non-contingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133, emphasis added.)

Plaintiff's Counsel declares the following hourly rates in this matter (1) Jacob Kashani ($650.00/hour); and (2) Julian Moore ($600.00/hour). (See Decl. of Kashani ¶¶9, 11-13, Exh. B.) These rates are appropriate given the attorneys' relative experience and qualifications. (See Decl. of Kashani ¶¶11-13.) Plaintiff has sufficiently demonstrated his counsel's hourly rate is reasonable in his community of practice in his specialized area of law.

Billed Hours

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

Plaintiff's fee recovery is based on the 42.4 hours spent by his attorneys litigating this case, not including the unspecified number hours incurred for reviewing the opposition, filing a reply, and attending the instant hearing. (See Decl. of Kashani ¶¶9, 15, Exh. B.)

Defendant objects to Plaintiff's billed fees on the basis they are unreasonable or unnecessary. (Opposition, pgs. 2-4.) The Court will address these specific arguments in turn:

First, Defendant argues that Plaintiff's counsel billed 4.0 hours for prelitigation and pre-engagement for from December 26, 2024, through January 31, 2025, and that such fees were excessive. (Opposition, pgs. 2-3.) Defendant cites to Dominguez v. American Suzuki Motor Corp. (2008) 160 Cal.App.4th 53, 58 for the premise that Song-Beverly does not authorize recovery for purely pre-litigation work. Defendant's citation is an incorrect representation of any of the legal argument presented on page 58 of Dominguez. Defendant is admonished for citing to legal authority that does not stand for the purpose asserted and violation of its duty of candor to the Court.[2] Accordingly, Defendant's argument that Plaintiff's 4.0 hours billed should be reduced is denied.

Second, Defendant argues Plaintiff's counsel's billing entry on February 11, 2025, for 5.9 hours to draft the complaint was excessive because the document was templated. (Opposition, pg. 3.) Defendant fails to offer legal support for the premise that templated work is not work that is reasonably incurred. Accordingly, Defendant's argument that Plaintiff's 5.9 hours billed should be reduced is denied.

Third, Defendant challenges 3.9 hours on recurring 0.2–0.6-hour client "update" calls. (Opposition, pg. 3.) Defendant's objection is not well taken; an attorney's fees motion is to be based on actual time expended, and it is not for this Court to question the time necessary for Plaintiff's counsel to adequately communicate with his client and prepare correspondence. Accordingly, Defendant's request to reduce Plaintiff's counsel's billed hours for time spent communicating with Plaintiff is denied.

Fifth, Defendant challenges 1.4 hours for billing entries on clerical and secretarial tasks billed at staff rates. (Opposition, pgs. 3-4.) Defendant does not provide citations to specific billed hours and refers generally to "1.4 hours ($230.00) at $150–$200 staff rates for purely clerical work—'calendared hearing,' 'gave notice to OC,' 'filed POS,' 'Scan and save documents,' and 'checked LA docket and entered future dates into an Excel sheet.' (Kashani Decl., Ex. B, pp. 1–3.)" (Opposition, pg. 3.) Defendant did not meet its burden to challenge hours with particularity. "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564, emphasis added.) Accordingly, Defendant's challenge to Plaintiff's hours billed on clerical and secretarial tasks is denied.

Finally, Defendant's argument that Plaintiff's attorneys' fees motion is templated and is therefore not compensable is not supported by legal authority. Defendant's argument that hours for reviewing the opposition, preparing a reply, and appearing for the hearing on the instant motion are also moot in light of the fact that the instant motion is opposed, Plaintiff replied, and the parties are present for the instant hearing. Accordingly, Defendant's challenge to Plaintiff's hours billed on Plaintiff's attorneys' fees motion is denied.

Accordingly, Plaintiff's request for attorneys' fees is granted in the total amount of $28,305.00, comprised of $25,305.00 in attorneys' fees and $3,000.00 on the instant motion.

Multiplier

Plaintiff requests a 0.2 multiplier. Given the routine work done in this case and the results obtained in this lemon law area, a multiplier is not appropriate. Any contingency risk factor is already accounted for in the hourly rates, which the Court has found to be reasonable.

Costs

The California legislature intended the word "expenses" in Song-Beverly to cover outlays not included in the detailed statutory definition of "costs," and the legislative history of Song-Beverly further demonstrates that the legislature exercised its power to permit the recovery by prevailing buyers of a host of litigation expenditures. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Pursuant to the settlement agreement, the parties agreed to address costs on the instant motion.

Defendant challenges Plaintiff's jury fee deposit cost and the third-party EFM and payment-processing surcharges. Neither challenge is well taken. First, the jury fee deposit cost is required to preserve a party's right to a jury trial; this Court requires such a deposit at the outset of case management setting. Therefore, the cost was reasonably incurred to preserve Plaintiff's right at the outset of the case. Second, Defendant fails to demonstrate how the third-party EFM payment-processing surcharges were not reasonably incurred, particularly because Los Angeles Superior Court requires attorneys to electronically file all documents.

Accordingly, Plaintiff is entitled to costs in the total amount of $727.79.

Conclusion

Plaintiff's motion is granted in the total reduced amount of $29,032.79. Plaintiff's request for attorneys' fees is granted the reduced amount of $28,305.00. Plaintiff's costs are granted in the total amount of $727.79.

Moving Party to give notice.

Dated:
July _____, 2026

Hon.
Daniel M. Crowley

Judge of
the Superior Court

[1] The Court notes that the settlement attached is not executed by both parties and does not indicate that Plaintiff opted for

§1(c)(ii) rather than §1(c)(i), other than the attorneys' fees are sought in the instant motion.

[2]
The Court notes that an appropriate pin cite would be to page 60 rather than 58, which at least provides a cursory, but irrelevant discussion about whether a prevailing plaintiff can recover attorneys' fees. (See Dominguez v. American Suzuki Motor Corp. (2008) 160 Cal.App.4th 53, 60 ["Otherwise, the Legislature would have provided for an attorney fees award in section 1793.2, subdivision (d)(1), which it did not, or it would not have conditioned an attorney fees award on prevailing in an action, which it did in section 1794, subdivision (d). [Footnote omitted] Based on a plain reading of the applicable statutory provisions, we cannot conclude the Legislature intended that every time a manufacturer repurchases or replaces consumer goods, a consumer is entitled to attorney fees, regardless of whether it was pre- or post-commencement of litigation."].)